THE STATE

Versus

PROFESSOR SILEMPA

And

GCINANI SILEMPA

IN THE HIGH COURT OF ZIMBABWE
KABASA J with Assessors Mr. J Ndubiwa and Mr. J Zulu
HWANGE 12 and 13 March 2026

Criminal trial

M Dube, for the state
V E Ndlovu, for the 1st and 2nd accused

KABASA J: The 2 accused appeared before us on a charge of murder as defined in s47 of the Criminal Law (Codification and Reform) Act [Chapter 9:23]. They both pleaded not guilty.

The state alleges that on 1st February 2025 around 2000hours the now deceased and his brothers Nkosiyabo Ndlovu and Mayford Ndlovu were walking home when they were accosted by the two accused and their accomplices who are at large. They accused the now deceased of being a bully and accused 1 proceeded to stab the deceased with a knife on the chest whilst accused 2 and the two accomplices struck the deceased with knobkerries and the back of axes several times all over the body. Efforts to restrain them were in vain until one Sithokozile Silempa came and managed to restrain the accused and their accomplices. The deceased sustained a deep cut on the chest and on the back and his forehead was swollen. He succumbed to these injuries.

In denying the charge accused 1 gave a history of some discord between him and the now deceased which discord started when one Mthulisi came to stay at accused 1's home. Mthulisi is accused 1's step-brother and the deceased objected to his presence at that home. On the day in question the now deceased ambushed the first accused and the deceased was armed with a knife. The deceased fell headlong and landed on the knife and that is how he sustained the fatal injury.

As for accused 2 he explained that he went to assist accused 1 when he heard him crying out for help. One Manford blocked him and was holding a machete but Mthulisi, who was in the vicinity disarmed him. Those who were in deceased's company fled leaving the deceased and accused 1 struggling for a knife. He later learnt of the deceased's death.

To prove its case the state produced the postmortem report which gave the cause of death as:

1. Cardiac tamponade

2. Heart laceration

3. Stab wound on the chest

The pathologist also observed the following marks of violence:

1.5cm long, penetrating wound on the left side of chest at level of the 3rd intercostal space. 1.5cm long incised wound on the left scapula. The heart had a laceration and the blood vessels of the heart had ruptured.

Evidence was led from 3 witnesses. The first two witnesses were in the deceased's company on the night in question. Their evidence was to the effect that accused 1, 2 and one Mthulisi and Andrea ambushed them as they were on their way home from the shops. They fled and the now deceased did not make good his escape. When they realised that the deceased had been caught they returned and saw accused 1 stabbing him with a knife. Accused 2 used the back of an axe to assault the deceased on the head.

Whilst there was no dispute regarding the stab wound which took the deceased's life, we were of the view that these two witnesses were not being completely truthful. They sought to deny issues that were so mundane, for instance that the second witness is called by the nickname "Deputy" and that there was some discord between the deceased and accused 1. The attack was not without motive as they sought to portray. Why they saw it fit to deny issues that were really not of that great significance was baffling. It was as if they had decided to just focus on how deceased met his death and deny everything else.

The third witness's testimony was to the effect that she was at her home when accused 1, 2 and the other 2 accomplices arrived carrying torches and asked about the deceased's whereabouts. She told them that she had not seen him whereupon they entered her yard illuminating the place with their torches before they left. She then heard someone saying "here they are" and they ran towards the deceased. She saw them assaulting him with sticks. She could see due to the illumination from the torches and there was moonlight.

This witness is the one who was said to have successfully restrained the accused but she however denied going to the scene insisting that she watched from a distance. Like the other 2 witnesses, it appears she was not being completely truthful.

That said, the issue is whether the evidence of these witnesses is to be completely disregarded. We think not. The fact that they did not want to acknowledge the discord between the deceased and accused 1 does not necessarily mean their evidence as regards how the deceased sustained the fatal injury is unreliable.

We say so because whilst the third witness did not want to place herself directly at the scene, the fact is she had seen the four individuals who came looking for the deceased.

It cannot be true therefore that it was the deceased and his brothers who waylaid the 1st accused. Granted, there may have been prior discord between accused 1 and the deceased but what is important are the events leading to the fatal stabbing.

Accused 1 said he was defending himself. In his defence outline he explained how the stabbing occurred. He held the deceased from behind in order to stop him from using the knife. The two struggled for the knife and as a result deceased fell headlong and landed on the knife. How can a person land on a knife and sustain the injury described in the postmortem?

In giving evidence he sought to give this elaborate description of how he held deceased by both hands and went behind him until they both fell and the knife somehow pierced the deceased in the chest. We tried to follow his explanation and tried to understand how such an injury could have been caused by merely landing on a knife or by both of them falling as they wrestled. It made no sense.

The lack of credibility as regards how the deceased sustained the stab wound actually lent credence to the 2 witnesses' evidence regarding how the wound was inflicted. It was a deliberate stabbing and not an accidental one. What qualities does a knife have such that a person can land on a knife and gets pierced to the heart through to the scapula?

The accused's rather far-fetched explanation cannot possibly explain the 1,5cm long penetrating wound on the 3rd intercostal space and 1,5cm long incised wound on the left scapula. The scapula refers to the shoulder blade, so the penetrating wound on the left side of the chest extended to the left shoulder blade. How such an injury could be inflicted by simply landing on a knife is a mystery.

Why was accused 1 now at pains to explain this holding of the deceased's hand using both his hands, going behind him and the two falling together in trying to explain how the stabbing occurred. Was he now abandoning the explanation that the deceased fell headlong and landed on the knife, how does one explain this statement from the accused as he gave his evidence.

> "Deceased was trying to stab me and I dodged and he scratched me on the chest. I got hold of his hands and twisted his hand he went to the other side. I then took the knife and I was behind him. He was also trying to grab the knife. I grabbed him and he fell and as he fell he got stabbed by the knife on the chest."

If he took the knife and was behind the deceased, how was the deceased trying to get the knife from a person who was behind him? He was stabbed in the chest. How was that possible if the accused was behind him? We pose these questions just to show that the accused's story made no sense.

When one is defending themselves it does not require much to explain how the other person sustained an injury that ended their life. It is a different story to explain that I disarmed him and then stabbed him with the knife thereby explaining the piercing or penetrating wound but to come up with a story that is difficult to comprehend and fails to explain the type of injury sustained just goes to show that this was not self defence and this supports the version given by the 2 witnesses on how the deceased sustained the 1,5cm long penetrating wound which pierced the heart and extended to the left shoulder.

Granted an accused does not have to convince the court as to the truthfulness of his story but such a story is juxtaposed with the evidence and not looked at in isolation.

When looked at in light of the wound that was inflicted, the accused's story was shown to be not only improbable but beyond doubt false. This was no self-defense. The unlawful attack was from the accused as demonstrated by the earlier visit to the 3rd witness home clearly exhibiting aggression (*R* v *Difford* 1937 AD 370, *S* v *Kurauone* HH 961 - 15, *S* v *Foster* HH 241-12).

Why would one use a knife to stab a human being in the chest with such force as to cause a I,5cm long penetrating wound, piercing the heart and not appreciate the real risk or possibility that such conduct may cause death? A knife is a lethal weapon and the chest houses vital organs such that the use of such a lethal weapon to stab another in the chest results in the infliction of a mortal wound which is what happened *in casu*.

As for accused 2 the postmortem made no reference to any injury that could have been inflicted by the use of blunt force. There was nothing to show that accused 2 was aware that accused I had a knife and that such knife could be used. Granted accused 2 was with accused 1 as they went in search of the deceased but the evidence does not provide that link which would justify the application of the doctrine of common purpose and therefore attribute accused 1's actions to accused 2 as provided for in S196 A of the Criminal Law Code S116A states in part:

> "(1) If two or more persons accused of committing a crime in association with each other and the state adduces evidence to show that each of them had the requisite *mens rea* to commit the crime weather by virtue of having the intention to commit it or the knowledge that it would be committed, or the realization of a real risk or possibility that a crime of the kind in question would be committed ……..)"

We are not satisfied that the evidence before us established the foregoing. We therefore decided to give accused 2 the benefit of the doubt.

Consequently accused 2 is found not guilty and acquitted whilst accused 1 is found guilty as charged.

Sentence

You are a 21 year old first offender. You were 20 when the offence was committed. You were youthful then and you are still youthful. Youthfulness denotes immaturity and lack of foresight bordering on thoughtlessness. (*S* v *Zaranyika* & *Ors* 1995 (1) ZCR 270). It is for this reason that courts tend to treat youthful offenders with some measure of leniency.

We accept there was discord between you and the now deceased and he may have been a bully but you ought not to have meted out the punishment you felt he deserved.

At 21 the death of someone at your hands is likely to be heavy on you. You will live with the stigma of being labelled a murderer. We were told you were friends with the deceased before Mthulisi came onto the scene. Taking the life of a brother and a friend is likely to haunt you for a long time.

You said after the stabbing the deceased uttered the words "nephew you have injured me" The words are likely to haunt you more so as the deceased subsequently died at the very spot where you stabbed him.

In aggravation is the fact that a life was unnecessarily lost. The deceased was your age mate, only 21 and you snuffed out whatever dreams the may have had.

You used a knife, a very lethal weapon and plunged it into his chest, piercing the heart. You used severe force and left the knife embedded in deceased's chest as you went home. You did not try to render assistance.

Courts have time without number exhorted people to respect the sanctity of life. Violence does not solve anything. The knife appears to be the weapon of choice in these senseless murders.

In arriving at an appropriate sentence we are alive to the need not to approach sentence with a vengeful attitude. (*S* v *Ndlovu* HB14 – 96). There must always be a humane approach to sentencing which ensures a just and fair sentence. (*S* v *Rabie* 1975 (4) SA 855(A).

The penalty must fit the offence, offender and be fair to society (*S* v *Zinn* 1969 (2) SA 537)

The presumptive penalty where the aggravating factors enumerated herein are present is 20 years. However the mitigatory factors cry out for a reduction of this presumptive penalty. Weighing these factors justifies a sentence below 20 years.

You are accordingly sentenced to 15 years imprisonment.

National Prosecuting Authority, state's legal practitioners
Dube, Nkala and Company Legal Practitioners, 1st accused's legal practitioners
Legal Aid Directorate, 2nd accused's legal practitioners